

Rana Afroz v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 · WRIT-C No. 3994 of 2023 · **Petition disposed; theft demand withdrawn; fresh Code order open.**

HEADNOTE

The writ challenging the demand notice dated 21.01.2022 for electricity dues in a theft case was disposed of on the electricity department's statement that the notice had been withdrawn and that fresh proceedings would be taken only after the procedure under the Electricity Supply Code, 2005, with liberty to pass a fresh order after that procedure.

FACTUAL SUMMARY

Rana Afroz petitioned the High Court of Judicature at Allahabad under Writ C No. 3994 of 2023 against the State of U.P. and four others, including the electricity department. He challenged the demand notice dated 21 January 2022 issued by respondent no. 5 for recovery of electricity dues said to arise from theft of electricity. On 6 February 2023 the department's counsel sought time to take instructions, especially on paragraph 22 of the writ petition, and the petition was ordered to be listed afresh on 15 February 2023.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Fresh order after withdrawal of a theft-dues demand

HOLDING

On the department's statement that the demand notice dated 21.01.2022 for recovery of electricity dues in a theft case stood withdrawn, the writ was disposed of with liberty to the department to pass a fresh order only after following the procedure prescribed under the Electricity Supply Code, 2005. The Court named no clause and did not decide theft liability or the amount. ¶ 2

PRINCIPLE TAGS

fresh-order-only-after-supply-code-procedure The department withdrew the 21.01.2022 theft-dues demand and undertook fresh proceedings under the Electricity Supply Code, 2005. The writ was disposed of without a merits finding, leaving liberty to pass a fresh order only after that procedure. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY AND FOR ANY DUES

The impugned demand was withdrawn. The Court did not adjudicate the allegation or the quantum and left the department to pass a fresh order after the Supply Code procedure. ¶ 2